

TENTATIVE RULING FOR CIVSB2317337
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Silva v. Skygroup Investments LLC, et al

Motion: Compel Further Responses to Interrogatories (Set Three)
 Compel Further Responses to Special Interrogatories (Set Four)
 Compel Further Responses to Production of Documents (Set Four)

Movant: Kendall Silva (Silva/Plaintiff)

Respondent: Skygroup Investments, LLC (Skygroup/Defendant)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

Plaintiff propounded Special Interrogatories (Set 4), Requests for Production of Documents (Set 4) [RFPs], Requests for Admissions (Set 3) [RFAs], and Form Interrogatories (Set 3). On January 9 and 21, 2026, Defendant served its responses. It served supplemental responses to RFPs on March 31, 2026. (Cole Decl. at ¶¶3-7.) Plaintiff now moves to compel further responses to (a) Form Interrogatory #17.1, regarding RFA #36, (b) Special Interrogatories #58-61, and (c) RFPs #92, 100, & 107. Defendant Skygroup opposes. The propounded discovery basically fall into 3 categories of information sought: (1) comparative evidence, (2) hiring documentation, and (3) communications concerning dog photographs.

ANALYSIS

Comparative Evidence

Defendant does not dispute that comparative evidence is relevant evidence. It argues that responding to comparative evidence discovery is burdensome. “The objection based upon burden must be sustained by evidence showing the quantum of work required.... But, under the pertinent code sections burden, alone, is not a ground for objection.” (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.) For a burden objection to be valid, the objecting party must demonstrate the burden will result in an injustice. (*Id.* at p. 418.)

Initially, although information on whether other general managers were subject to discipline for the same ground Silva was terminated/disciplined is undisputed as being relevant, it does not equate to good cause existing to obtain a copy of the actual disciplinary records of other general managers. These individuals would hold a privacy interest in any discipline issued against

them whether via an email or formal action report. Facts on the number of similar disciplines could bear on establishing Silva treated differently, but the physical document demonstrating that discipline has no bearing on the issue.

Special Interrogatories #60 and 61 are particular as to whether another general manager was terminated because of unprofitability. Although all disciplinary records may not exist in a personnel file, Defendant offers no contention that a termination record would not be in a personnel file with information on the basis of the termination. Per HR Director Sanders, there were 52 general managers at the time Silva was a manager. It is not demonstrated burdensome to open around 52 personnel files to ascertain if terminated and why terminated.

Defendant cannot essentially deny an RFA and then refuse to state the facts in support. Although the personnel files of general managers may not disclose all forms of issued discipline, the response to an interrogatory requires the responding party to answer each as completely and straightforwardly based on information reasonably available, and to the extent possible. (Code Civ. Proc., §2030.220, subds. (a)-(b).) If the responding party lacks personal knowledge to fully respond, then it must state so and make a reasonable and good faith effort to obtain the information. (Code Civ. Proc., §2030.220, subd. (c).) Defendant seeks to limit its reasonable efforts to reviewing emails. However, each general manager would have had a supervisor that sent the disciplinary email or made the verbal coaching. No information is offered that it be overburdensome to speak with the supervisors of general managers to ascertain whether he or she ever disciplined a general manager for unprofitability to then narrow any email inquiries that would need to be made.

Finally, the Special Interrogatories do not have any limitation period. Considering the period within RFA #36, which frames the response to Form Interrogatory 17.1, a reasonable period for the Special Interrogatories is between May 21, 2021, and August 27, 2022.

Hiring Documentation

Contrary to Defendant's assertions, the demand is not asking for the 554 applicant files [Sanders Decl. at ¶10] but is limited to the applicant file of the person hired by Silva. However, although evaluating whether an exemption applies does require considering the time an exempt employee performs non-exempt and exempt activities, it is not demonstrated that it supports production of application records of the individuals Silva hired. It is not demonstrated that having the physical copy of an application file is necessary to evaluate the time involved to engage in the

activity of hiring personnel. Ultimately, the best estimator of time it took to hire individuals is Silva.

Dog Photographs

Document demand #100 asks for any correspondence regarding the photos of dogs from the Skygroup social media. In its supplemental response, Defendant agreed to search for correspondence following the dog bite incident in August 2022, at the Ontario location, related to social media posts of dog. Plaintiff offers no argument why the supplemental agreement to look and produce records is deficient. The Reply conceded to limit the scope of communications to those after the dog bite incident in August 2022.

RULING

1. Motion to Compel Further Responses to Form Interrogatories (Set Three) is GRANTED. Defendant is ordered to provide full verified code compliant responses without objection within 30 days.
2. Motion to Compel Further Responses to Special Interrogatories (Set Four) is GRANTED, but limited to a period between May 21, 2021, and August 27, 2022. Defendant is ordered to provide full verified code compliant responses without objection within 30 days.
3. Motion to Compel Further Responses to Production of Documents (Set Four) is DENIED.
4. Plaintiff's request for sanctions is DENIED. In the case at hand, the imposition of sanctions would be unjust.
5. Movant to give Notice.